

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Intra-Court Appeal No. **11177/2021**

Shagufta Naseer etc.

Versus

Chief Executive Officer District Health Authority
Sargodha etc.

J U D G M E N T

Date of hearing:	23.10.2025
Appellants by:	Mr. Junaid Jabbar Khan, Advocate.
Respondents by:	Mr. Hussain Ibrahim Muhammad, Assistant Advocate General, Punjab. Mr. M. Afzal Shahid, Senior Law Officer and Mr. M. Abrar Khan, Law Officer, office of Director General Health Services Punjab, Lahore. Mr. Khurram Abbas Wahga, Law Officer, Primary and Secondary Healthcare Department. Mr. Shahbaz Ahmad Sh., Law Officer, Finance Department.

MALIK WAQAR HAIDER AWAN, J:- Through this Intra-Court Appeal, appellants have put to challenge order dated 02.02.2021 passed by learned Single Judge in Chamber whereby Writ Petition No. 62221/2019 filed by appellants was dismissed.

2. The short-lived facts of the case are that recruitment of appellants No.1 and 2 was initially made as Computer Operators (BS-15 and BS-12 respectively) on contractual terms in the year 2007 who were subsequently regularized in the year 2009. Upon upgradation and redesignation of posts of I.T. Staff/Computer Operators in different various departments, appellants agitated the stagnation of their posts and eventually, the Governor of the Punjab upgraded/redesignated various

posts including those of Computer Operators in BS-12, BS-15, BS-16 and BS-17 in terms of revised prescribed qualification through Notification No.FD.PC.40-43/2017(E) dated 14.12.2018 issued by Government of the Punjab, Finance Department (in short “**notification dated 14.12.2018**”). Through letter No. SO(ND)1-61/2018 dated 31.12.2018, the Primary and Secondary Healthcare Department, Punjab, while endorsing the notification dated 14.12.2018, passed necessary directions to the relevant authorities. As a result thereof, Office Order No.1072-1148/E&A was issued on 14.01.2019 by the Chief Executive Officer, District Health Authority, Sargodha (in short “**office order dated 14.01.2019**”), whereby posts of appellants were upgraded, restructured and redesignated as Senior Computer Operators (BS-16). Out of the blue, in the garb of clarification made by the Finance Department, the upgradation in favour of appellants was withdrawn vide Office Order No.14111-89/E&A dated 08.08.2019 issued by the office of Chief Executive Officer, District Health Authority, Sargodha (in short “**office order dated 08.08.2019**”). Since the dreams of appellants went up in smoke, therefore, they instituted Constitutional Petition No.62221/2019 which was dismissed by learned Single Judge in Chamber vide order dated 02.02.2021 compelling them to prefer the instant Intra-Court Appeal.

3. The main ground of attack of learned counsel for the appellants is that clarification of Finance Department was misconstrued and mixed up the terms “upgradation” and “promotion”. Learned counsel avers that service rules are required for promotion but not for upgradation of posts and as such withdrawal of upgradation is unjustified but this fact escaped the prudent consideration of learned Single Judge in Chamber. Pleads that there is no promotion channel for the appellants and depriving them of upgradation equates discrimination which offends Article 25 of the Constitution of Islamic Republic of Pakistan, 1973 (hereinafter called “**Constitution**”). Argues that upgradation is not part of terms and condition of service and distinction between upgradation and promotion

has been highlighted by the august Supreme Court of Pakistan in its esteemed judgment reported as Regional Commissioner Income Tax, Northern Region, Islamabad and another v. Syed Munawar Ali and others (2016 SCMR 859). Lastly submits that withdrawal of upgradation was absolutely without lawful authority and as such the impugned order passed by learned Single Judge in Chamber is liable to be set aside.

4. In opposition, learned Assistant Advocate General as well as learned Law Officers representing respondents No.2 to 4 have controverted the arguments of learned counsel for the appellants while supporting the impugned order passed by learned Single Judge in Chamber. Learned Assistant Advocate General states that process for revision of service rules for granting promotion channel to Computer Operators including appellants is in the pipeline and they cannot be granted promotion till finalization of such process. Learned Assistant Advocate General has referred to paragraph No. 2(v) of the report filed on behalf of respondents No.3 and 5 to emphasize that the Chief Executive Officer, District Health Authority, Sargodha misinterpreted the notification dated 14.12.2018 by granting higher pay scales to Computer Personnel vide office order dated 14.01.2019 which was undone on the advice of concerned Administrative Department. Avers that upgradation of a post is not a vested right and appellants cannot compel the Government to grant them upgradation merely on the point of discrimination. To sum up, he prays for dismissal of this Intra-Court Appeal and maintaining the findings of learned Single Judge in Chamber being unexceptionable.

5. Heard. Record minutely examined.

6. First of all, we extend our considerations towards dissimilarity between “upgradation of post” and “promotion”. In pursuit to a just and equitable resolution of the present controversy, wisdom is sought from the dictum laid down in Secretary to the Government of Pakistan,

Establishment Division, Islamabad and another v. Muhammad Ahmed Khan and others (2025 SCMR 434) wherein distinction has been drawn between upgradation and promotion. Relevant extract from paragraph No.9 is reproduced below:-

“We are mindful that the upgradation of a post is not a vested right, rather it stems from a policy decision intended to benefit a particular set of employees under the scheme embedded in the policy. Upgradation cannot be mixed up with promotion. In the case of upgradation, the employee continues to hold the same post without any change in his duties, but he is accorded a higher pay scale in order to mitigate the distress associated with stagnation due to a lack of progression or promotional avenues.”

(Emphasis supplied)

7. In the above backdrop, we can safely say that the terms “upgradation” and “promotion” are entirely different from each other. It is imperative to note that dispute arose when notification dated 14.12.2018 *qua* upgradation/redesignation of posts of appellants and others was withdrawn as a result of clarification dated 24.07.2019 issued by Government of the Punjab, Finance Department, meaning thereby cause of conflict is the clarification, relevant portion of which is reproduced hereunder for ready reference:-

“In case more than one tiers were available prior to issuance of Notifications dated 14.12.2018, these tiers would be re-structured according to the said Notifications through amendment in the service rules and re-structured/up-graded posts would be filled by promotion or fresh recruitment as per revised prescribed qualifications mentioned in the above said Notifications.”

8. We are clear in our mind that service rules can always be amalgamated and amended by the competent authority but same are applicable to promotion only. The purpose of service rules with regard to promotion is to provide fair opportunities to progress in life and profession based upon seniority and performance. On the other hand, in the case of upgradation, the incumbent continues to hold the same post without any alteration in duties or responsibilities; however, a higher pay

scale is conferred upon him with a view to alleviating stagnation and addressing the hardship arising from the absence of promotional or career advancement opportunities. Moreover, the purpose of upgradation is to eliminate the sufferings of employees from stagnation and to avoid them from being stuck up in some isolated post without any pathway or probability of promotion despite satisfactory length of service in a particular post. In addition to above, upgradation is the policy to improve the life of incumbents of post. It is a key to instigate a person to work hard. Article 25 of the Constitution ordains that every citizen shall be dealt with equally and there shall be no discrimination. Article 9 of the Constitution talks about right to life which includes hope to progress, equal opportunities to progress. It is devastating even to think that a person starts his professional career in a same grade and finishes his or her professional life in that very grade.

9. The pivotal question before us is whether, even if service rules were in existence, upgradation would nonetheless remain a necessity of the day to enable employees to make both ends meet in the light of prevailing price hike and inflationary trends. Even assuming that service rules had been framed, the object and purpose of upgradation would still be to compensate incumbents for the impact of inflation and the rising cost of living, to attract and retain competent personnel, and to motivate the workforce. Upgradation, therefore, has no nexus with the service rules which are designed to ensure fair opportunities for career progression. The criterion for promotion is ordinarily based on seniority-cum-fitness, whereas the purpose of upgradation is the overall welfare of employees. Upgradation is not person-specific; it is post-specific and general in nature. Conversely, the service rules aim to provide a structured mechanism for competition and advancement within the service.

10. In a civilized and competitive system, it is generally considered imperative to provide clear pathways for career progression. In the

absence of promotional rules or opportunities, employees may perceive the system as unfair, which in turn leads to dissatisfaction and diminished motivation. The absence of upgradation of posts, when coupled with the lack of service rules governing promotion, inevitably results in employee stagnation, a sense of being undervalued, decreased productivity, and a potential decline in innovation. The legitimate expectation of progression constitutes the cornerstone of every service, profession or post.

11. When we meticulously examine the impugned order of learned Single Judge in Chamber, it comes to surface that during the course of arguments, learned Assistant Advocate General repeatedly stated (under instructions) that relevant rules were being amended and sought adjournments on this pretext. Even, it was contended that the draft proposal was sent to the Service and General Administration Department for granting promotion channel to the Computer Operators etc. (See Paragraph No.4 of the impugned order of learned Single Judge in Chamber). The constitutional petition came to a definitive end on 02.02.2021 and learned Single Judge in Chamber directed the respondents to ensure the process for amendment in the service rules is **expedited** to redress the grievance of the employees holding such posts (See Paragraph No.6 of the impugned order of learned Single Judge in Chamber). Even, during the proceedings of instant Intra-Court Appeal, learned Assistant Advocate General availed ample time on the ground that service rules were being amended. It is very unfortunate to mention here that despite lapse of protracted period, no service rules are in the picture. There is no gain saying the fact that the impugned order of learned Single Judge in Chamber is based on the assurance of learned Assistant Advocate General (under instructions) that process of amendments in service rules was in progress which appears to be misstatement on the part of respondents as uptil now, no such service rules have been brought on record.

12. We are cognizant of the doctrine of trichotomy of powers and the Courts are always reluctant to interfere with the policymaking domain of the Executive. However, the situation in the present case is somewhat different. A policy decision was taken by the Government in the form of upgradation/redesignation of certain stagnant posts, which was subsequently withdrawn on the basis of a clarification dated 24.07.2019 issued by the Government of the Punjab, Finance Department, in the garb of making amendments to the service rules. It is astonishing to note that the necessity for amending the service rules was introduced for the first time on 24.07.2019 and since then no such rules have been framed, which speaks volumes and strongly indicates the Government's lack of interest in alleviating the distress of its employees. This act of the Government is violative of the fundamental rights of appellants and other benefited employees guaranteed under the Constitution and clearly offends Articles 9 & 25 thereof.

13. For the foregoing reasons and conduct of respondents, we are of the considered view that upgradation/redesignation granted in favour of appellants alongwith others was justified and its withdrawal was a source of deprivation and frustration for the employees. The Government, as an employer, is under an obligation to treat its employees with care and sensitivity, for it stands in a position analogous to that of a mother who ensures the well-being and dignity of her children but in the present, the situation was otherwise. Moreover, persistent stagnation and lack of promotional avenues often result in a *brain drain* from public service, as competent and skilled employees seek opportunities in other sectors offering better prospects and recognition.

14. We truly appreciate the wisdom and prudence of learned Single Judge in Chamber, who, with judicious foresight, directed the respondents to accelerate the process for amendment in the service rules and consciously employed the term "expedite" in this regard. The

expression “to expedite” signifies that a matter must be dealt with promptly, efficiently, and without unnecessary delay, so that justice is not obstructed by procedural or administrative inertia.

15. Regrettably, respondents appear to have failed to carry the weight of the word “expedite” and have not lived up to the true spirit and responsibility inherent in that directive, which reveals much about their priorities and seriousness in mitigating the distress of the appellants and other employees occupying stagnant posts.

16. For what has been discussed above, this Intra-Court Appeal is **allowed** while setting aside the impugned order passed by learned Single Judge in Chamber. As a consequence thereof, Notification No.FD.PC.40-43/2017(E) dated 14.12.2018 issued by Government of the Punjab, Finance Department and Office Order No.1072-1148/E&A dated 14.01.2019 issued by the Chief Executive Officer, District Health Authority, Sargodha are revived. Resultantly, Office Order No.14111-89/E&A dated 08.08.2019 issued by the office of Chief Executive Officer, District Health Authority, Sargodha shall become inoperative. Respondents are directed to take necessary steps for implementation of this judgment in letter and spirit within a period of **60 days** from today under intimation to Deputy Registrar (Judicial) of this Court. Office to transmit a copy of this judgment to the respondents forthwith for information and compliance.

17. Before parting with this judgment, we feel it expedient to observe that once the Government announces a policy, it is equally responsible for ensuring its uniform and effective implementation across the board in consonance with the directives/guidelines of the august Supreme Court of Pakistan in case of Secretary to the Government of Pakistan, Establishment Division, Islamabad and another (supra). Relevant extract from paragraph No.9 is as follows:-

“Once the Government announces a policy, it is also responsible for enforcing such policy across the board to accord the benefit

of the policy to all those who are eligible under it and may be benefited because of it. No doubt, the Court cannot interfere in the policymaking domain of the Government, but when a widespread and comprehensive policy is announced to benefit employees, it should be implemented bigheartedly and generously, without adding any ifs and buts or discrimination that can stifle the main objective of the policy. In fact, an efficient policy implementation aligns with the actual targets and rationales of a policy to operationalize it and ensure its optimal impact rather than creating hindrances in its swift implementation. In the present cases, not only did the department of the respondents fully supported the upgradation, but also communicated with the concerned quarter in order to espouse the interest of their employees. The upgradation policy was approved by the Chief Executive, which should have been implemented in letter and spirit. However, it has often been observed that despite validly approved policies with a broad spectrum, instead of being implemented conscientiously within their purview and scope, the Finance Department or other departments, loyal more than the king, raise unwarranted objections to nullify the effect of these policies, rendering them unworkable or redundant; a demeanor that ought to be obviated.”

18. In the light of foregoing, we expect that the Government will take earnest, timely, and effective measures to redress the longstanding issue of stagnation and to ensure that employees are afforded equitable avenues of progression and motivation in service, consistent with the principles of fairness and good governance.

(AHMAD NADEEM ARSHAD)
JUDGE

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
30.10.2025

Abis Ali

APPROVED FOR REPORTING

JUDGE

JUDGE